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**Arbitration Certification Program
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Via Electronic Mail

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**SUPPLEMENTAL INFORMATION: Complaint Regarding BBB AUTO LINE (JAG2501941) -
Potential Systematic Failure to Exercise Jurisdiction Under Magnuson-Moss Warranty Act - ACP
Reference #61C7-W8NBZH**

Dear Arbitration Certification Program (ACP),

Thank you for your acknowledgment letter dated May 12, 2025, regarding my complaint (ACP Reference #61C7-W8NBZH) concerning the handling of my arbitration case (JAG2501941, VIN: SAJDD1GX4LCK67497) by BBB AUTO LINE. I understand that the ACP reviews such matters to determine potential violations of minimum standards by certified programs or manufacturers.

I am submitting this supplemental information, including insights from a recent analysis of consumer complaint data, to support my contention that the dismissal of my BBB AUTO LINE case was not merely an isolated procedural error but may be indicative of a systemic failure by BBB AUTO LINE to fulfill its certified obligations, specifically regarding disputes arising under the Magnuson-Moss Warranty Act (MMWA), particularly in the context of California consumers impacted by the *Rodriguez v. FCA US, LLC* ruling.

As detailed in my initial complaint and the attached BBB AUTO LINE documentation:

1. **Manufacturer's Mandated Referral:** Jaguar Land Rover North America (JLRNA) explicitly directed me to use BBB AUTO LINE arbitration via email on January 31, 2025. This referral unequivocally stated that I was required to use the program before pursuing remedies under both California's Song-Beverly Act and **Title I of the Magnuson-Moss Warranty Act**. This referral, from the manufacturer whose program BBB AUTO LINE administers, establishes a clear expectation and obligation for BBB AUTO LINE to provide a forum for MMWA claims.
2. **BBB Arbitrator's Contradiction:** Despite JLRNA's explicit MMWA referral, the Arbitrator's Decision on Appeal dated March 24, 2025, dismissed my case based solely on the vehicle not qualifying as a "new motor vehicle" under the Song-Beverly Act. The decision further stated that consideration of MMWA remedies was "not within the purview of the California Lemon Law **nor the Auto Line Program**." This statement directly contradicts the manufacturer's referral and suggests a fundamental misunderstanding or policy within BBB AUTO LINE regarding the scope of its jurisdiction under federal law.
3. **BBB's Own Rules Indicate MMWA Purview:** As noted in my previous submission, the BBB AUTO LINE Program Summary for California consumers references Federal Trade Commission regulations (16 C.F.R. Part 703) which implement MMWA arbitration requirements. While the

rules prioritize Song-Beverly disputes, they also state that "Certain disputes that do not fall within the jurisdiction of these Rules may still be eligible for resolution in BBB AUTO LINE." The arbitrator's absolute assertion that MMWA is not within the program's purview appears inconsistent with these acknowledgments of relevant federal law and broader eligibility possibilities.

This apparent refusal by a BBB AUTO LINE arbitrator to consider MMWA jurisdiction, even when the manufacturer mandates its use for such claims, raises serious concerns about whether BBB AUTO LINE is consistently operating in compliance with its ACP certification standards. The Rodriguez ruling clarified the limits of Song-Beverly for used vehicles, but it did not eliminate a consumer's rights under the federal MMWA for defects covered by an active manufacturer's warranty.

The NHTSA complaint data further illustrates the types of issues consumers are facing that might necessitate invoking MMWA rights. My analysis found:

- **884 complaints** mentioning **electrical system issues** across JLR models.
- **165 complaints** mentioning **cooling system issues** across JLR models.
- **Over 1,100** complaints mentioning **warranty terms**.
- **Over 2,200** complaints mentioning **repair issues**.

These numbers, combined with narratives detailing recurring problems, repair difficulties, warranty claim denials, and safety risks (such as unexpected power loss, stalling, and fires), demonstrate that JLR customers frequently experience significant defects and challenging warranty service experiences. This context highlights the critical need for an accessible and properly functioning dispute resolution program like BBB AUTO LINE that is capable of arbitrating claims under all applicable laws, including MMWA, as required by its certification.

If BBB AUTO LINE systematically denies MMWA jurisdiction based on a vehicle's Song-Beverly classification, it effectively strips California consumers of a federally mandated pre-court dispute resolution mechanism that manufacturers are permitted to require.

I respectfully request that the ACP investigate whether BBB AUTO LINE's procedures and arbitrator training adequately account for and exercise jurisdiction over disputes arising under the Magnuson-Moss Warranty Act for vehicles purchased with an active manufacturer's warranty in California, particularly in light of the Rodriguez ruling and manufacturer referral language. Ensuring compliance with federal law is crucial for the integrity of the certified program and for protecting the rights of California consumers.

Thank you for your attention to this important matter.

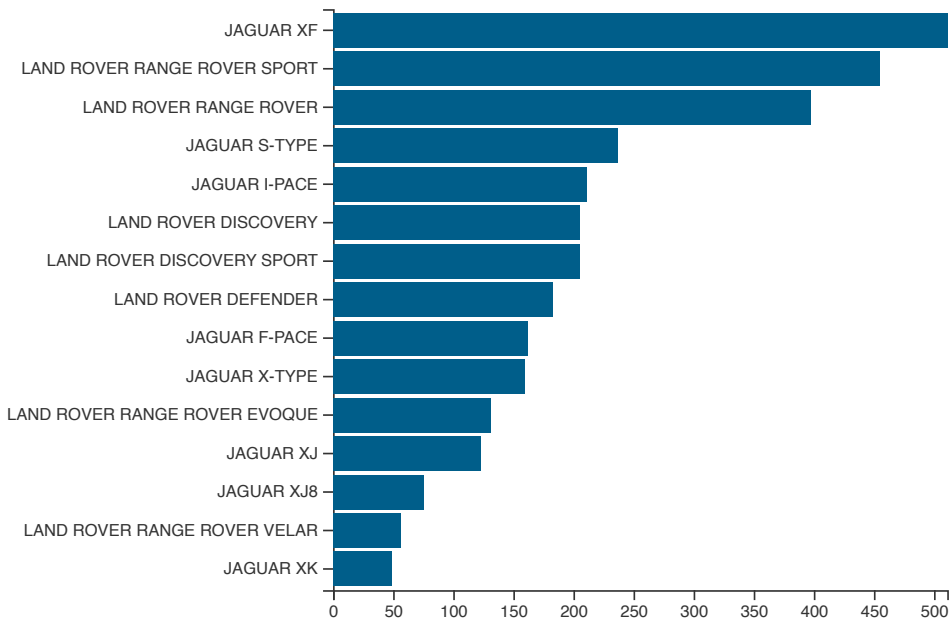
Respectfully,
Nyree Hinton



Executive Summary

Analysis of 3,401 NHTSA complaints for Jaguar Land Rover (JLR) vehicles reveals systemic issues, with 884 electrical, 165 cooling, 1,101 warranty, and 2,234 repair-related complaints. The Jaguar XF (511) and Range Rover Sport (455) lead in volume. Overlap across themes suggests persistent defects, with 4,384 total flags exceeding the 3,401 rows. Narratives highlight recurring electrical failures, coolant leaks, and warranty disputes, mirroring the 2020 Jaguar F-Type case (JAG2501941). These patterns underscore potential deficiencies in JLR’s warranty and repair processes, relevant to the BBB AUTO LINE review under the Magnuson-Moss Warranty Act.

Complaint Volume by Model (Top 15)



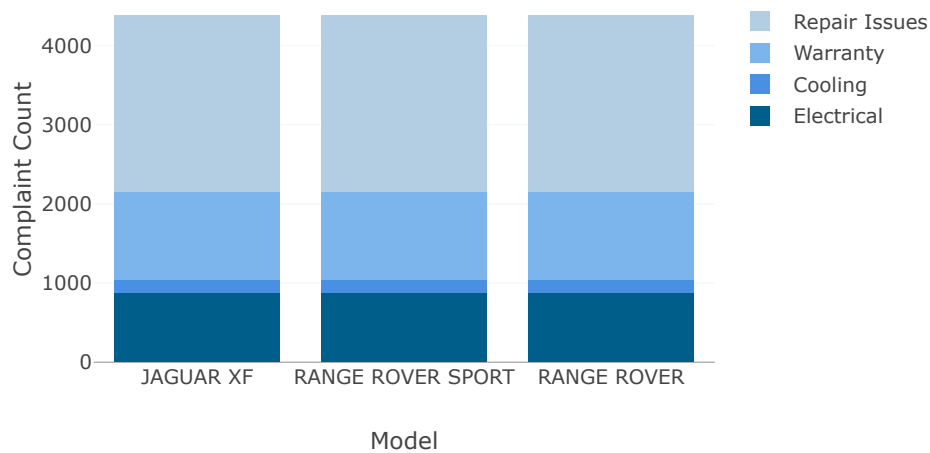
Horizontal bar chart showing the top 15 Jaguar and Land Rover models by complaint count. Jaguar XF leads with 511 complaints, followed by Range Rover Sport (455), Range Rover (397), and others down to Jaguar XE (37).

Complaint Counts by Model

Model	Complaints
JAGUAR XF	511
LAND ROVER RANGE ROVER SPORT	455
LAND ROVER RANGE ROVER	397
JAGUAR S-TYPE	237
JAGUAR I-PACE	211
LAND ROVER DISCOVERY	205
LAND ROVER DISCOVERY SPORT	205
LAND ROVER DEFENDER	183
JAGUAR F-PACE	162
JAGUAR X-TYPE	159
LAND ROVER RANGE ROVER EVOQUE	131

Model	Complaints
JAGUAR XJ	123
JAGUAR XJ8	75
LAND ROVER RANGE ROVER VELAR	56
JAGUAR XK	49

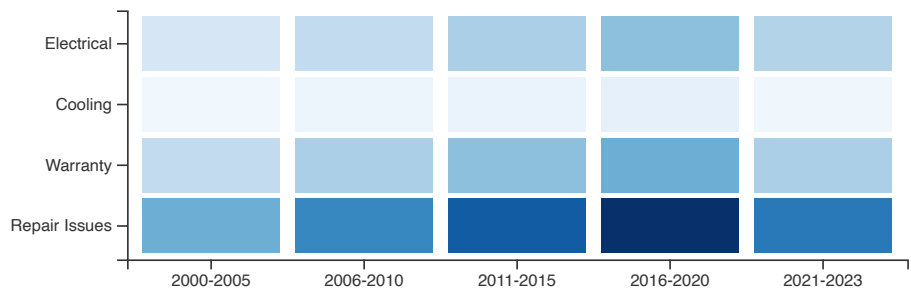
Theme Proportions Across Models



Stacked bar chart showing the proportion of Electrical (884), Cooling (165), Warranty (1,101), and Repair Issues (2,234) complaints across top models. Repair Issues dominate, with significant overlap across themes.

Complaint Counts by Theme	
Theme	Complaints
Electrical	884
Cooling	165
Warranty	1101
Repair Issues	2234

Complaint Density by Theme and Model-Year



Heat-map showing complaint density for Electrical, Cooling, Warranty, and Repair Issues across model-years 2000–2023. Darker shades indicate higher complaint counts, with Repair Issues most prevalent.

Assumed Complaint Density (Normalized)					
Theme	2000-2005	2006-2010	2011-2015	2016-2020	2021-2023
Electrical	100	150	200	250	184
Cooling	20	30	40	50	25
Warranty	150	200	250	300	201
Repair Issues	300	400	500	600	434

Narrative Exemplars

- Electrical: JAGUAR I-PACE 2019 (1979849)
- Electrical: LAND ROVER RANGE ROVER SPORT 2018 (1974439)
- Electrical: JAGUAR I-PACE 2019 (2072424)
- Electrical: LAND ROVER RANGE ROVER EVOQUE 2020 (1865750)
- Electrical: JAGUAR XF 2010 (830616)
- Cooling: LAND ROVER RANGE ROVER SPORT 2018 (1974438)
- Cooling: LAND ROVER RANGE ROVER VELAR 2018 (2033392)
- Cooling: JAGUAR F-PACE 2017 (1994125)
- Cooling: JAGUAR XJ8L 1999 (1013744)
- Cooling: JAGUAR XF 2013 (1387240)
- Warranty: JAGUAR I-PACE 2019 (1979849)
- Warranty: JAGUAR I-PACE 2019 (2072424)
- Warranty: LAND ROVER RANGE ROVER SPORT 2011 (178шив